

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Cooper	Team: Squad #7	CCRB Case #: 201601718	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 07/29/2015 8:10 AM	Location of Incident: Southern Boulevard and Longwood Avenue	Precinct: 41	18 Mo. SOL 1/29/2017	EO SOL 1/29/2017	
Date/Time CV Reported Wed, 03/02/2016 11:23 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 03/02/2016 11:23 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Lionel Perales	16435	946613	041 PCT
2. POM Charles Betancourt	22998	946782	041 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Charles Betancourt	Discourtesy: PO Charles Betancourt acted discourteously toward § 87(2)(b)	
B.POM Charles Betancourt	Discourtesy: PO Charles Betancourt spoke discourteously to § 87(2)(b)	
C.POM Lionel Perales	Discourtesy: PO Lionel Perales spoke discourteously to § 87(2)(b)	
D.POM Charles Betancourt	Abuse: PO Charles Betancourt threatened to arrest § 87(2)(b)	
E.POM Lionel Perales	Abuse: PO Lionel Perales threatened to arrest § 87(2)(b)	

Case Summary

On July 29, 2015, at approximately 8:10 a.m., § 87(2)(b) was pulled over by PO Charles Betancourt and PO Lionel Perales from the 41st Precinct at Southern Boulevard and Longwood Avenue in the Bronx. § 87(2)(b) did not have his license with him and was issued four summonses for § 87(2)(b). When § 87(2)(b) asked why he had been issued four summonses, PO Betancourt allegedly threw the summonses at § 87(2)(b) and then walked off (**Allegation A**). At this point, § 87(2)(b) exited his vehicle, and PO Betancourt and PO Perales allegedly told § 87(2)(b) “Get back in your fucking car or we will arrest you.” (**Allegations B -E**).

There was video evidence for this case that did not capture the alleged misconduct. However, at the time of the interview, § 87(2)(b) was unwilling to provide the video to the CCRB.

Mediation, Civil, and Criminal Histories

§ 87(2)(b) declined mediation. As of April 11, 2016, § 87(2)(b) has not filed a Notice of Claim (Board Review 13). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer Histories

- This is the first complaint filed by § 87(2)(b) (Board Review 1).
- PO Perales has been a member of service for seven years § 87(4-b), § 87(2)(g). He has been the subject of four prior allegations stemming from three cases, none of which included substantiated allegations.
- PO Betancourt has been a member of service for seven years and he has been the subject of four prior allegations stemming from four cases, none of which were substantiated.

Findings and Recommendations

Allegation A- Discourtesy- PO Charles Betancourt acted discourteously toward § 87(2)(b)

Allegation B- Discourtesy- PO Charles Betancourt spoke discourteously to § 87(2)(b)

Allegation C- Discourtesy- PO Lionel Perales spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that he had asked PO Betancourt to tell him why he was pulled over at least three times and PO Betancourt did not give him a reason. When PO Betancourt returned to § 87(2)(b)'s vehicle holding four summonses, § 87(2)(b) asked PO Betancourt again for an explanation and PO Betancourt tossed the summons at § 87(2)(b) and walked back to his vehicle. At this point, § 87(2)(b) exited his vehicle and asked both officers why he had been issued the summonses. During his interview, § 87(2)(b) first attributed the statement “Get back in your fucking car or we will arrest you”, to PO Betancourt. Later in the interview, § 87(2)(b) stated that PO Perales made the comment. When asked to clarify who made the alleged comment, § 87(2)(b) said that PO Betancourt stated, “Get back in your fucking car” and that PO Perales

said “Get back in your fucking car before we fucking arrest you” (Board Review 14). During § 87(2)(b)'s initial phone statement to the CCRB, he said that one of the officers told him, “Get back in your fucking car. We will arrest you if you don't fucking do what we tell you right now” and that PO Perales said, “I don't give a fuck. We're not going to explain shit to you. Get in your fucking car right now before I arrest you. If you don't get in your fucking car right now, I'm arresting you.” During a follow-up call, § 87(2)(b) stated that PO Perales told § 87(2)(b) “Get back in your car or we will fucking arrest you.” When asked if PO Betancourt used any discourteous language, § 87(2)(b) stated that he could not recall what exactly PO Betancourt said but thought he possibly used profanity. However, on neither occasion did § 87(2)(b) mention that PO Betancourt threw the summonses at him (Board Review 19).

PO Betancourt did not recall the incident; he stops an average of 10 to 20 people, a day, and was interviewed at the CCRB nine months after the vehicle stop, as § 87(2)(b) filed this complaint eight months late. PO Betancourt did not recall § 87(2)(b) refusing to take the summonses that were issued to him. PO Betancourt denied that he threw the summonses at § 87(2)(b) but acknowledged that if a motorist refuses to take a summons, PO Betancourt would place the summons on the motorist's dashboard. PO Betancourt did not recall if § 87(2)(b) left his vehicle but if § 87(2)(b) did exit his vehicle, PO Betancourt would have told him to get back in his vehicle because the location is a busy street. PO Betancourt denied that he told § 87(2)(b) “Get back in your fucking car or I will arrest you.” PO Betancourt did not recall whether or not PO Perales said that to § 87(2)(b). However, PO Betancourt stated that § 87(2)(b) could have been arrested for not having his license and not providing his registration and insurance (Board Review 3;7-10; 15).

PO Perales also did not recall the incident, did not see PO Betancourt throw the summonses at § 87(2)(b) and denied that he heard PO Betancourt threaten to arrest § 87(2)(b) or say, “Get back in your fucking car or I will arrest you.” PO Perales did not recall if § 87(2)(b) exited his vehicle. PO Perales denied that he uses profanity or that he told § 87(2)(b) “Get back in your fucking car or I will arrest you,” and stated that § 87(2)(b) did not do anything during the incident that would have resulted in his arrest (Board Review 4 & 16).

§ 87(2)(g)
[REDACTED]

Allegation D- Abuse of Authority- PO Charles Betancourt threatened to arrest § 87(2)(b)

Allegation E- Abuse of Authority- PO Lionel Perales threatened to arrest § 87(2)(b)

It is undisputed based upon § 87(2)(b)'s account, PO Betancourt's memo book entry and PO Perales notation on his fly page, that after § 87(2)(b) was pulled over, he did not have a license and that he provided his name, address, and date of birth. After providing that information, PO Betancourt and PO Perales returned to their vehicle and ran § 87(2)(b)'s information. PO Betancourt then issued § 87(2)(b) four summonses for speeding at 51 miles per hour, failure to produce insurance, being an unlicensed operator of a motor vehicle, and failure to produce registration.

"Whenever a permit or license is required to operate a motor vehicle, no person shall operate a motor vehicle unless he is the holder of a class of license which is valid for the operation of such a vehicle." Vehicle and Traffic Law, Section 509(2). "The owner of a motor vehicle must maintain and produce insurance when requested to do so by a police officer while the vehicle is being operated on a public highway." Vehicle and Traffic Law, Section 312 (b) (Board Review 5-6). "An officer may effect an arrest for a petty offense in his presence, including violations and traffic infractions." NYPD Patrol Guide, Section 208-01(3c) (Board Review 18).

§ 87(2)(g)

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date